

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
ROBERT WILSON,

Plaintiff,

-v-

THE CITY OF NEW YORK, a municipal entity;  
New York City Police Department ("NYPD") Inspector  
(Ins.) Wilson Arambales, and John Doe, in their  
individual capacities,

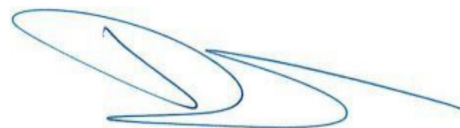
Defendants.  
-----X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within **20** days after the service of this summons, exclusive of the day of service (or within **30** days after the service of this summons if not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York  
July 15, 2019

BELDOCK LEVINE & HOFFMAN LLP



By: \_\_\_\_\_  
David B. Rankin  
Marc A. Arena (*Admission Pending*)  
99 Park Avenue, PH/26<sup>th</sup> Fl.  
New York, New York 10016  
(212) 490-0400  
*Attorneys for Plaintiffs*

To:

City of New York  
Corporation Counsel of the City of New York  
100 Church Street  
New York, NY 10007

Inspector Wilson Arambales  
46<sup>th</sup> Precinct  
2120 Ryer Avenue  
Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
ROBERT WILSON,

Plaintiff,

**VERIFIED COMPLAINT AND  
DEMAND FOR A JURY TRIAL**

**Index No.**

-v-

THE CITY OF NEW YORK, a municipal entity;  
New York City Police Department ("NYPD") Inspector  
(Ins.) Wilson Aramboles, and John Doe, in their  
individual capacities,

Defendants.  
-----X

Robert Wilson, by his attorneys, Beldock Levine and Hoffman LLP, for his Complaint,  
alleges as follows:

### **INTRODUCTION**

1. This is a civil rights action brought to vindicate Plaintiff's rights under the Fourth, Fifth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983.

2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis seized, detained, searched, and arrested him. By reason of Defendants' actions, including their unreasonable and unlawful searches and seizures, Plaintiff was deprived of his constitutional rights.

3. Plaintiff seeks an award of compensatory and punitive damages, and attorneys' fees.

**PARTIES**

4. At all times hereinafter mentioned, Robert Wilson was and is still a resident of the County of the Bronx in the State of New York.

5. Defendant the City of New York (“City”) is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, it was the employer of the individually-named defendants.

6. New York City Police Department Inspector (“Ins.”) Wilson Aramboles (“Aramboles”), and John Doe (referred to collectively as the “Individual Defendants”) are and were at all times relevant herein, officers, employees and agents of the NYPD.

7. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees, and agents of the NYPD.

8. The Individual Defendants are being sued in their individual capacities.

9. The Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff's rights.

10. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

11. The true name and shield number of the John Doe Defendants are not currently known to the Plaintiff. However, they were employees or agents of the City of New York on the date of the incident. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said individuals as Defendants in an amended pleading once the true names and shield numbers of said Defendants become known and (b) that the Law Department should immediately begin preparing their defense in this action.

### **JURISDICTION**

12. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988; the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

### **VENUE**

13. Venue is properly laid in the Supreme Court of the State of New York, County of the Bronx because the Plaintiff resides in the Bronx and the incident occurred in the Bronx.

### **STATEMENT OF FACTS**

14. On October 14, 2018, at approximately 8:05 p.m., Robert Wilson was unlawfully arrested by Ins. Arambales at approximately the intersection of Ryer Avenue and East 181<sup>st</sup> Street, in the County of the Bronx in the City and State of New York.

15. Plaintiff was lawfully operating a vehicle.
16. The police nevertheless took Plaintiff into custody and charged him with having a forged license plate when the vehicle had a dealer's plate and there was no indication the license plate was forged.
17. Ins. Aramboles also falsely charged that Mr. Wilson only had a learner's permit.
18. Mr. Wilson was arraigned the next day after spending the night in custody.
19. Plaintiff was falsely charged with criminal acts based on the false information provided by Ins. Aramboles.
20. On January 24, 2019, the criminal complaint was dismissed for a violation of Mr. Wilson's right to a speedy trial.

**FIRST CLAIM**  
**DEPRIVATION OF RIGHTS UNDER THE UNITED STATES CONSTITUTION**  
**42 U.S.C. § 1983**  
***(Against the Individual Defendants)***

21. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
22. Defendants, under color of state law, subjected the Plaintiff to the foregoing acts and omissions, thereby depriving Plaintiff of his rights, privileges and immunities secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable seizure of his person; (b) freedom from arrest without probable cause; (c) freedom from the denial of a fair trial by the presentation of fabricated evidence; (d) right to due process under the law; (e) freedom from malicious prosecution; and (f) freedom from officers' failure to intervene to prevent the complained of conduct.

23. Defendants' deprivation of Plaintiff's constitutional rights resulted in the injuries and damages set forth above.

**SECOND CLAIM**  
**LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL**  
**VIOLATIONS 42 U.S.C. § 1983**  
***(Against Defendant the City of New York)***

24. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

25. At all times material to this complaint, Defendant City had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

26. At all times material to this complaint, Defendant City failed to properly train, screen, supervise, or discipline its employees and police officers, including the individual Defendants and failed to inform the individual Defendant's supervisors of their need to train, screen, supervise or discipline the Individual Defendants.

27. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth, Fifth, and Fourteenth Amendments.

28. As a result of the foregoing, Plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

**THIRD CLAIM**  
**VIOLATIONS OF THE NEW YORK STATE CONSTITUTION**

29. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

30. Defendants subjected Plaintiffs to the foregoing acts and omissions without due process of law, thereby depriving Plaintiffs of rights, privileges, and immunities secured by Article 1, §§ 8, 9, 11, and 12 of the New York State Constitution, including, without limitation, the following deprivations of his rights, privileges, and immunities:

i. Plaintiff was deprived of their right to be free from unreasonable searches and seizures, in violation of New York State Constitution Article 1, § 12.

**JURY DEMAND**

31. Plaintiff demands a trial by jury in this action on each and every one of his damage claims.

WHEREFORE, Plaintiff demands judgment against the Defendants individually and jointly and prays for relief as follows:

- a. that he be compensated for violation of his constitutional rights, pain, suffering, mental anguish and humiliation; and
- b. that he be awarded punitive damages against the Individual Defendants; and
- c. that he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may deem just and proper.



Dated: July 15, 2019  
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP



By: \_\_\_\_\_

David B. Rankin  
Marc A. Arena (*Admission Pending*)  
99 Park Avenue, PH/26th Floor  
New York, New York 10016  
(212) 490-0400

**ATTORNEY'S VERIFICATION**

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: July 15, 2019  
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP



By: \_\_\_\_\_  
David B. Rankin  
99 Park Avenue, PH/26th Floor  
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